

24NWLC32365 24NWLC32365

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-07-28

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Case Number: 24NWLC32365 Hearing Date: July 28, 2026 Dept: 25

HEARING DATE: Tues., July 28, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Lawrence

Of La Brea v. Gallion COMP.

FILED: 07-24-24

CASE NUMBER: 24NWLC32365

NOTICE: OK

PROCEEDINGS: MOTION

TO ENFORCE SETTLEMENT AND ENTER JUDGMENT AGAINST DEFENDANT PURSUANT TO CCP
664.6

MOVING PARTY: Plaintiff Lawrence Of La Brea

RESP. PARTY: None

MOTION TO ENFORCE SETTLEMENT

(CCP § 664.6)

TENTATIVE RULING:

The Court GRANTS Lawrence Of La Brea's
motion to enforce settlement and enters judgment against Michael Gallion pursuant
to the stipulation in the reduced amount of \$19,789.70, reflecting \$16,120.28
in principal, \$910.00 in costs, \$1,885.85 in interest, and \$873.57 in attorney

fees.

Lawrence is to give notice.

SERVICE:

[X] Proof of Service Timely
Filed (CRC, rule 3.1300) OK

[X] Correct Address (CCP §§
1013, 1013a) OK

[X] 16/21 Court Days Lapsed
(CCP §§ 12c, 1005(b)) OK

OPPOSITION: None filed as of July 23,
2026 [] Late [X] None

REPLY: None filed as
of July 23, 2026 [] Late [X]
None

ANALYSIS:

Lawrence of La Brea sued Michael

Gallion for a common counts cause of action in July 2024. In March 2025, the parties stipulated that

Gallion would pay \$17,000.00 in monthly payments of \$1,700.00. Gallion made only one payment. Lawrence now seeks to enter judgment against

Gallion pursuant to the stipulation.

Code of

Civil Procedure section 664.6, subdivision (a), allows a court to enter

judgment pursuant to the terms of a written, signed settlement. To

enforce a written settlement agreement under Code of Civil Procedure section

664.6, the following three elements must be met: (1) the parties must have come to a meeting of

the minds on all material points; (2) there must be a writing that contains the

material terms of the agreement; and (3) the writing must be signed by the

parties. (Weddington Productions, Inc. v. Flick (1998)

60 Cal.App.4th 793, 797–798.)

The stipulation between Lawrence and Gallion is valid and enforceable under Code of Civil Procedure section 664.6. In the event of breach, the stipulation provides that Lawrence may then obtain a judgment for the entire balance owed by Gallion for the principal balance of \$17,820.28, plus court costs, interest, and attorney fees, minus any payments made by Gallion.

Lawrence requests a judgment of \$20,484.70 against Gallion, comprising \$16,120.28 in principal, which reflects the original \$17,820.28 principal less \$1,700.00 for payments received from Gallion, \$1,605.00 in costs, \$1,885.85 in interest, and \$873.57 in attorney fees.

The Court finds the principal, attorney fees, and interest requests supported. As for costs, Lawrence requests \$695.00 in publication costs, but the Court rejected Lawrence's application for publication. Thus, the Court awards Lawrence costs in the reduced amount of \$910.00.

Accordingly, the Court GRANTS Lawrence's motion to enforce settlement and enters judgment against Gallion pursuant to the stipulation in the reduced amount of \$19,789.70, reflecting \$16,120.28 in principal, \$910.00 in costs, \$1,885.85 in interest, and \$873.57 in attorney fees.

Lawrence is to give notice.